



jkemp@olshanfoundation.com
901-684-1933
3464 Jackson Ave
Memphis, TN, 38122

Agreement / Contract

Olshan Foundation Repair & Waterproofing Co. of Memphis, LLC (dba Olshan Foundation Solutions), hereinafter called CONTRACTOR, enters into this agreement on this Nov. 3, 2025, with: **Alex Cash**, hereinafter called OWNER to provide labor, equipment, and materials for the work herein upon the structure located at:
946 River Landing Drive, Memphis, United States, TN 38103

Owner's Contact

Alex Cash
6145936899
alex.e.cash28@gmail.com

Certified Structural Technician

Tim Hughes
9014817352
thughes@olshanfoundation.com

Recommended Plan

Pilings	Quantity
Cablelock ST Plus - Ext	
Lifetime Service Warranty	
Base Price: Lifetime Service	20
Cablelock ST Plus - Int	
Lifetime Service Warranty	
Base Price: Lifetime Service	14
Concrete patch	9
Subtotal	\$43,235.00
Total	\$43,235.00

Modified Plan Selected by OWNER

Owner Initial Here >>>

Pilings	Quantity
Cablelock ST Plus - Ext	
Lifetime Service Warranty	
Base Price: Lifetime Service	12
Cablelock ST Plus - Int	
Lifetime Service Warranty	
Base Price: Lifetime Service	6
Concrete patch	3
Subtotal	\$22,545.00
Total	\$22,545.00

Payment

Balance \$22,545.00

Payment Terms:

Payment for services to be paid: (1/2) \$11,272.50 First half due when work begins, (1/2) \$11,272.50 Balance upon completion

Payment method

Check

Special Provision

- * Customer is responsible for having the air-conditioning units temporarily moved prior to installation of pilings.
- *Customer is responsible for either having turf removed before Olshan’s arrival or arranging for a separate contractor to patch or replace it after installation.
- *Olshan will remove flooring as needed for the installation of pilings on the interior of the house. Olshan is not responsible for any damage to the flooring and will not reinstall it. It is the customer’s responsibility to have the floor covering patched or reinstalled after the work is completed.

Olshan Does Not Guarantee Absolute Level or Crack Closure

Yes

<<< Owner Initial acknowledging receipt of a copy of Applicable Warranties & Warranties Terms & Provisions

LIMITED WARRANTY: UNLESS A LONGER WARRANTY PERIOD IS SPECIFIED, CONTRACTOR WARRANTS THE WORKMANSHIP OF THE INSTALLATION FOR ONE YEAR FROM ITS COMPLETION DATE. DURING THE WARRANTY PERIOD, CONTRACTOR WILL REPAIR AT NO CHARGE TO YOU, ANY DEFECTS DUE TO FAULTY WORKMANSHIP. CONTRACTOR'S WARRANTY EXCLUDES INDIRECT OR CONSEQUENTIAL DAMAGES, DAMAGE CAUSED BY ABUSE, MISUSE, NEGLIGENCE, WORK PERFORMED BY OTHERS, OR IMPROPER CARE/CLEANING. YOU MAY HAVE OTHER RIGHTS UNDER APPLICABLE LAW. MECHANICAL AND ELECTRICAL PARTS ARE COVERED BY AND LIMITED TO MANUFACTURER'S WARRANTY AND ARE NOT WARRANTED BY CONTRACTOR.

This signed AGREEMENT, the attached TERMS and CONDITIONS, Warranties provided and drawings (Addendum A) collectively shall represent the Contract/Agreement for repairs with the OWNER. To the extent there is a conflict between documents, the AGREEMENT shall control.

This Agreement must be signed, returned to the office and signed by Contractor within 30 days to be binding upon both parties. I have read and initialed confirming my understanding of the terms of this Agreement. By signing below, I agree with and will abide by the terms and conditions set forth in this Agreement, and authorize Contractor to perform the work specified.

_____	_____	_____	_____
Tim Hughes	Date	Customer Signature	Date
_____	_____	_____	_____
General Manager (Contractor)	Date	Customer Signature	Date



1 - 1



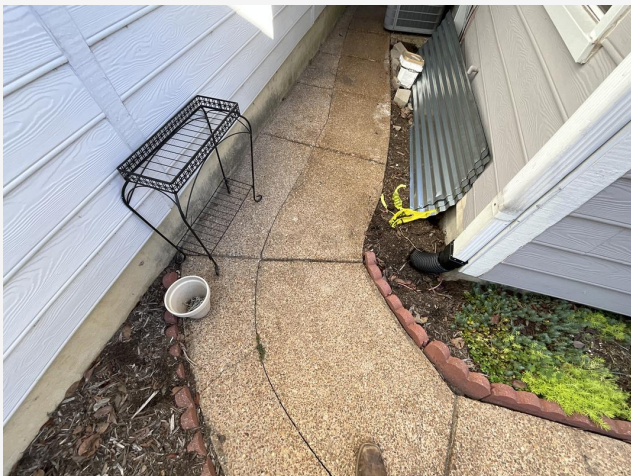
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1 - 4



2 - 1



2 - 2



2 - 3



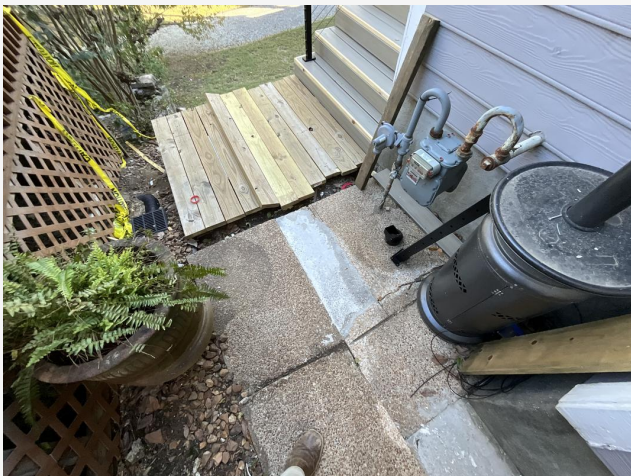
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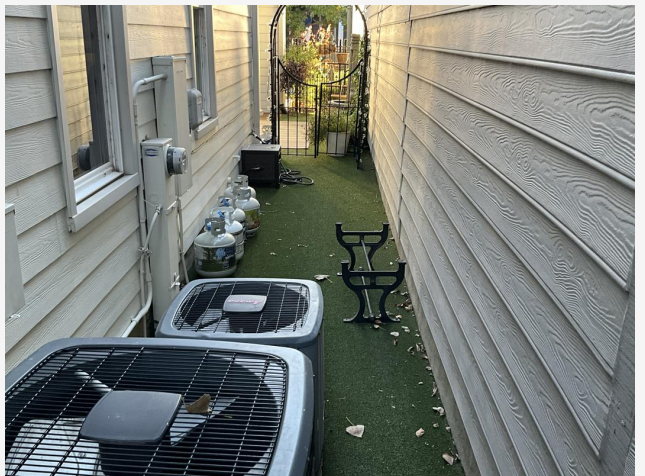
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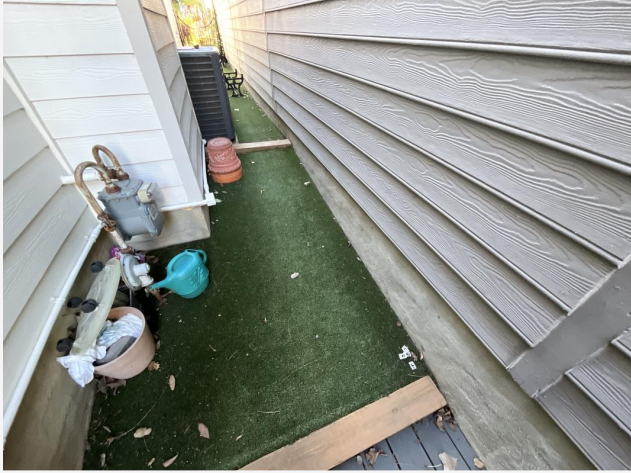
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General Terms and Conditions

Scope: This Agreement is between You (also referred to as "Owner") and Olshan (also referred to as "Contractor"). The "Scope of Work" (referred to below as the "Work") to be performed is as set forth on the Agreement and drawings provided and referred to as Addendum A. All Work will be supervised by an Olshan employee and only the Olshan employee may collect payment for the Work performed. Installation is limited to the described Scope of Work, subject to any agreed upon Change Order. All Work will be completed in substantial accordance with the described Scope of Work. The "Scope of Work" is not intended to be an exclusive remedy concerning the current or future need for additional work in other areas associated with this structure.

Although Contractor has examined the Structure, Contractor is not familiar with conditions below grade level, the design of the foundation, or the construction materials used in the foundation and this repair plan is based upon experience in the industry. The price quoted is based upon visual observations and with the assumption the Structure has been built using standards of construction and concrete or other material thickness as determined by standard building codes and practices. Unless specified, the Scope of Work is not based on an Engineering Structural report. You may obtain an independent Engineering Review at your own discretion and cost to evaluate the scope of work prior to signing this Agreement. Prior to commencement and during the performance of the Work, conditions may exist or be discovered that were not visible or known when the Agreement was submitted and signed. If any unforeseen or unknown conditions arise or are discovered, Contractor, in its sole discretion, may provide Owner with a Change Order for a new "Scope of Work" for Owner to sign and approve. Unless specified in the "Scope of Work", this Work does not include the services of an independent registered Engineer to evaluate, design, inspect, or report on the Work performed. Owner acknowledges acceptance of the "Scope of Work" to be performed by Contractor. If an Engineer or other third party is employed by Owner, all cost and liability associated with the third-party evaluation and recommendations shall be the sole responsibility of Owner and may require a Change Order.

Your Responsibilities: If the property is subject to any easements, covenants or other legal encumbrances that could affect installation or the work to be performed, You agree to give written notice to Contractor identifying the extent and location of the easements, covenants or other legal encumbrances, prior to commencement of the Work to be performed. You agree to (i) facilitate the location of underground/overhead utility lines, (ii) identify your property lines, (iii) ensure that construction areas are free of preexisting hazards, i.e., unsafe physical conditions or environmental hazards and building/zoning or code violations, (iv) to grant Contractor access to construction areas during working hours, (v) provide power and water to construction areas, (vi) to keep unattended minors out of the construction areas at all times while the Work is in progress (vi) keep pets out of the construction areas at all times while the Work is in progress, and (vi) keep all permits on display at all times. IF YOU CHOOSE TO ASSIST CONTRACTOR WITH ANY PART OF MATERIAL DELIVERY, INSTALLATION, OR ENTER THE CONSTRUCTION AREA, YOU ASSUME THE FULL RISK AND ASSOCIATED PERSONAL INJURY LIABILITY. You agree that all warranty claims against Contractor, it's employees, agents, owners, or subcontractors, under this Agreement shall be made to Contractor within 30 (thirty) calendar days of the date You first become aware of the problem.

Contractor's Responsibilities: Contractor will complete the Work in a workmanlike manner. Contractor may either not start, or immediately discontinue, installation upon discovery of unforeseen, hidden, or unknown physical or hazardous conditions at Your property. Contractor is not required to repair such conditions. Under this Agreement, Contractor may perform the installation, or arrange for the installation through an authorized specialty subcontractor.

EXCLUSIONS FROM LIABILITY: The six (6) provisions contained herein are expressly material to this agreement and the cost to the Owner for the "Scope of Work" is determined in part by the ACCEPTANCE by the OWNER to these provisions by **initialing here _____**.

- During the course of, or as a result of the Work, some of the component parts and materials included in the Structure such as plumbing, electrical, floor covering, sheetrock, plaster, stucco, brick, brick mortar, wallpaper, roofing, vinyl products, etc, may pull apart, tear, break, crack, bulge, stretch, and wrinkle. It is understood and agreed that the Contractor is not liable for the damage to or cost of repair of the same. Additionally, Contractor is not liable for and this Agreement excludes any responsibility or liability for Contractor to make cosmetic repairs, redecorating, or replacement of materials not specifically required in this Agreement. Any such damages or repairs are the sole responsibility and liability of Owner. If interior repairs require removal of carpet, tile or any type of floor covering Contractor will remove such floor covering as needed but will not re-stretch or re-seam or replace any such floor covering unless specifically included in the Scope of Work.
- Contractor is not responsible for damage to plumbing, underground utilities, sprinkler systems, or other systems resulting from deterioration, separation due to structural movement, damage during excavation, or preexisting problems or leaks.
- Access holes in the slab, walks, porches, or driveways created by Contractor will be patched with concrete. Concrete patches will not match in color. Access by tunneling is an additional charge. The cost for access by tunneling for warranty work is NOT covered by Warranty.
- Contractor may need to remove plants and shrubbery which obstruct installation areas. Any item removed will be replanted. Contractor is not responsible for damage to, or loss of landscaping and Contractor does not provide any warranty on landscaping.
- MOLD, LEAD AND OTHER CONTAMINANTS: Contractor and Owner expressly agree that Contractor and its employees, officers, directors, shareholders, affiliates and agents shall not be liable for damages or costs of any type – and Owner will hold harmless and indemnify Contractor from any and all claims or causes of action, including negligence, arising in any way from exposure to or the presence, release, growth or origin of any microorganism, organic or inorganic contaminant including, but not limited to, mold, mildew, fungus, yeast, allergens, infectious agents, wet or dry rot, rust or lead occurring in any way as a result of the services provided and work performed.
- Contractor is not responsible for water intrusion from patched concrete. Owner understands and agrees that all concrete patches should be sealed with concrete sealant by Owner before any coverings are replaced. Contractor does not seal such patches.

CHANGES AND CHANGE ORDERS: Contractor may perform additional work if it is the subject of a Change Order and may be subject to additional charges. Any changes to the Scope of Work, i.e., a substitution of materials or an expansion or contraction of the Scope of Work, will require You and Contractor to first sign a written Change Order that will become part of this Agreement. Any Change Order must be clear in scope and specify any additional payment that may be required. Following discovery of previously undisclosed/unidentified legal encumbrances on premises, building/zoning code violations, or hidden/unforeseen physical/hazardous conditions or material changes in "Work Scope" conditions, Contractor may immediately ask for a Change Order or discontinue Installation and terminate this Agreement without further obligation to You. If Owner does not agree to the changes and costs outlined in the Change Order, Contractor may refund monies paid less cost of materials and labor Incurred, and this Agreement shall be of no force and effect, and the Warranty shall be void.

WARRANTY EXCLUSIONS AND LIMITATIONS: YOU WILL BE PROVIDED A COPY OF THE WARRANTY TERMS AND CONDITIONS APPLICABLE TO THE WORK. YOU MAY RECEIVE MULTIPLE WARRANTY TERMS AND CONDITIONS IF MULTIPLE PRODUCTS OR SERVICES ARE PURCHASED. YOU WILL BE REQUIRED TO INITIAL ON THE AGREEMENT THAT YOU HAVE RECEIVED, READ AND UNDERSTAND THE WARRANTY TERMS AND CONDITIONS FOR THESE PRODUCTS OR SERVICES.

Financed Transactions: If You are financing this transaction In whole or in part, Your separate loan agreement (to which Contractor is NOT a party) will determine: (i) the amount financed (the amount of credit provided to You); (ii) the associated finance charges (the dollar amount the loan will cost You); and (iii) the total payment (the amount You will have paid when You have made all scheduled payments). You will be further subject to Your loan agreement's terms and conditions.

Payment for services Is due per the terms defined In Agreement If full payment is not made within thirty (30) days after completion of the Work Owner will be assessed a one hundred dollar (\$1 00) late payment penalty fee plus monthly interest charge calculated as the lesser of 1.5% or the highest lawful rate permitted by law on any outstanding balance until the balance is paid in full. You agree to pay all costs and expenses, including attorney fees, incurred in collecting unpaid balances.

Security Interests/Liens: If You make all payments as required under this Agreement, no security interest will be placed against Your property by Contractor. If a security Interest is placed on Your property, It creates a lien, mortgage, or other claim against Your property to secure payment and may cause a loss of Your property if You fail to pay as requested.

LIMITS OF CONTRACTOR LIABILITY: Owner agrees, to the fullest extent permitted by law, that Contractor's liability for any and all claims, losses, costs, damages of any nature whatsoever shall be limited to and will not exceed the total paid by Owner to Contractor on this project Such claims and causes Include, but are not limited to negligence, strict liability, breach of contract or warranty. Contractor shall not be liable for any inherent, consequential, special, exemplary, or resulting damages regardless of whether the claim is based on warranty, contract, statutory remedy, negligence or tort Owner understands and agrees Contractors liability for work performed shall be limited to the correction of any materials and workmanship as set forth in the Agreement If It Is determined that damage was caused by Contractor's negligence, Contractor's liability Is limited to making adequate repairs. Contractor shall not be liable for the cost of new replacement or new construction. Both Owner and Contractor herby waive any claims against the other for lost use, lost profit, lost revenue, Indirect, incidental, or consequential and/or exemplary damages relating to the installation, materials, or services of Contractor or authorized service provider to this agreement. To the extent Owners' state does not allow the exclusion or limitation of incidental or consequential damages, this section shall only apply to the extent permitted by law.

ARBITRATION: Contractor and Owner agree that any dispute or lawsuit arising out of this Agreement and Warranties shall be resolved by mandatory and binding arbitration pursuant to the arbitration laws in this state and in accordance with this agreement and the rules of the American Arbitration Association (AAA). Parties may arbitrate with an agreed upon arbitrator. If unable to agree, binding arbitration shall be administered by AAA. All costs shall be divided equally among the parties. This agreement is determined in part by the ACCEPTANCE by the OWNER to these provisions by **initialing here _____**.

ELECTRONIC SIGNATURE: The parties to this Agreement agree that digital or imaged signatures of the parties included in this Agreement are intended to authenticate this writing and to have the same force and effect as the use of manual signatures.

BY SIGNING BELOW, YOU CONFIRM THAT YOU HAVE READ AND UNDERSTAND THE TERMS AND CONDITIONS OUTLINED ABOVE AS PART OF THIS AGREEMENT AND YOU WI L L ABIDE BY THE TERMS AND CONDITIONS AS SET FORTH I N THE AGREEMENT AND YOU AUTHORIZE THE CONTRACTOR TO PERFORM THE WORK AS SPECI FIED IN THE AGREEMENT SUBJECT TO THESE TERMS AND CONDITIONS. This contract contains all of the terms and conditions agreed to by both parties and no other representations, warranties or agreements, expressed or implied, shall vary the terms of this contract and may not be changed except by an instrument in writing and signed by both parties. BEFORE SIGN I NG, YOU ARE ADVISED TO CONSULT AN ATTORNEY I F YOU HAVE ANY QUESTIONS CONCERNING THIS AGREEMENT.

CANCELLATION: OWNER MAY CANCEL THIS AGREEMENT WITHOUT PENALTY OR OBLIGATION BY DELIVERING WRITTEN NOTICE TO CONTRACTOR BY MIDNIGHT ON THE THIRD BUSINESS DAY AFTER SIGNING THIS AGREEMENT. If cancelled, Owner's payments will be returned within ten (10) business days after receipt of the Notice of Cancellation.

Owners Signatures (only required if these Terms and Conditions are not printed on back of AGREEMENT):

Owner(s): _____
v. 08.23.23

Date: _____



FOUNDATION SERVICE WARRANTY

This certifies that the CABLE LOCK ST PLUS SYSTEM OF REPAIR has been installed on the property at:

SAMPLE

If any adjustments are required during the Warranty Period due to settling, Olshan will adjust areas previously underpinned by Olshan without cost to the owner for the first year after installation and adjust at a cost of \$200** per piling after the first year, subject to the Warranty Terms and Provisions. This Warranty is completely transferable to any and all future owners of this home subject to "Conditions For Transfer".

**Cost is adjusted annually based on Annual Average Consumer Price Index as published by US Dept. of Labor using a baseline year of 2010

CABLE LOCK ST PLUS WARRANTY TERMS AND PROVISIONS

IMPORTANT FACTS CONCERNING YOUR WARRANTY:

Soil conditions in this area are such that some future shifting of the soil may occur, particularly during periods of extended dry weather, which may result in new or additional settling. Therefore, we do not guarantee that the structure will not experience additional movement. This warranty provides that Olshan will re-raise or adjust settled areas where the work has been installed with no cost for materials or labor to make the adjustment. Our warranty does not include adding additional underpinning in other areas. If a building is partially underpinned, settlement may occur in areas not underpinned by Olshan such as the remainder of the perimeter and/or the interior of the building. Adjustments required due to movement in these other areas are not covered by our warranty and may require additional repairs at owner's cost. If the work performed was a partial underpinning of the structure, then the remaining structure may move independently of the underpinned area creating a greater differential than if the entire structure was underpinned or no underpinning was done.

THIS WARRANTY EXCLUDES ALL OF THE FOLLOWING:

- All costs for Removal and Replacement of collateral structural or cosmetic components, including but not limited to floors, wall coverings, windows, decks, landscaping, or tunneling required to access our prior work.
- All damage caused by catastrophic occurrences and acts of God including, but not limited to earthquakes, floods, hurricanes, tornadoes, war, terrorism, fire, sink holes or mud slides.
- All work done by another party in areas where Contractor's work was performed. If work is performed on an area warranted by Contractor without Contractor's prior written approval, ALL WARRANTY for the repair is VOIDED.
- Any movement of the foundation not due to settlement such as "Heave" or "horizontal movement". "Heave" is defined as the swelling of the soils resulting in differential uplift of the structure and "horizontal movement" may be caused by soil erosion, creep and or slough of the soils. These conditions may be caused by excess moisture from plumbing leaks, poor drainage (surface and subsurface), flooding, rising water table, trees or their removal, or other causes. Maintaining proper drainage, plumbing and landscaping is the responsibility of the owner.
- All costs of redecorating, repairing or replacing of any materials or items not specifically incorporated in the product installed per the agreement. By example, it is possible that more stress fractures may develop and damage may result such as, but not limited to, sheetrock, wall plaster, tile, wooden members, roof, or other rigid materials and these items are not covered.

TRANSFERRING WARRANTY:

Upon satisfaction of the following conditions, the Warranty will be transferred by Owner to a subsequent purchaser of the Property. **Representation of the Warranty to prospective buyers must disclose these conditions.** Conditions For Transfer: (1) Owner must provide Contractor an Olshan **Request For Warranty Transfer** form signed by both the New Owner and Prior Owner prior to the sale/purchase of the Property; (2) At Contractor's discretion, Contractor must be permitted access to the property to perform a limited assessment of the prior repairs covered by this warranty to determine if any intervening situations have occurred that must be corrected prior to transfer or that may have voided the warranty; (3) Contractor must be paid a \$200 transfer fee, and (4) the terms, conditions and provisions of the contract and warranty must be provided to new Owner. Upon satisfaction of the foregoing conditions and Contractor's approval of the repair of any intervening situations identified by the assessment, a written Confirmation of Transfer will be provided to New Owner by Contractor. Failure to comply with all of these requirements within 90 days of the sale/purchase will result in the warranty being voided.

Olshan Foundation Repair & Waterproofing Company of Memphis

Merchant ID: 81067868



Loan Plan Number	Product Type	Interest Rate	Purchase Window	Description	Payment Factor
2511	6 Months No Interest No Payment	17.99% - 24.99%	Up to 6 months	No interest if paid in full within 6 months, no monthly promo payments due	N/A
2521	12 Months No Interest No Payment	17.99% - 24.99%	Up to 6 months	No interest if paid in full within 12 months, no monthly promo payments due	N/A
4158	15 Months No Interest with Payment	17.99% - 24.99%	Up to 6 months	No interest if paid in full within 15 months, monthly promo payments due	N/A
2720	Fixed Interest Rate	10.99%	Up to 6 months	Fixed Rate 10.99% for 84 months	1.71%
2832	Fixed Interest Rate	12.99%	Up to 6 months	Fixed Rate 12.99% for 120 months	1.49%
9992	Variable Interest Rate	7.99% - 19.99%	Up to 6 months	Variable interest rate for 120 months	Variable
9998	Variable Interest Rate	7.99% - 19.99%	Up to 6 months	Variable interest rate for 180 months	Variable

GreenSky Contact Information:

Customer Service: 866-936-0602 **Mon-Fri:** 8:00 am - 12:00 am ET, **Sat-Sun:** 8:00 am - 11:00 pm ET

Merchant Services: 800-357-1558 **Mon-Fri:** 8:00 am - 12:00 am ET, **Sat-Sun:** 8:00 am - 11:00 pm ET, option 3 OR email Merchants@GreenSkyCredit.com

Ways to Apply:

1. Mobile app on your phone or tablet
2. Phone: 866-936-0602 (have your merchant ID and plan number ready)
3. Email to Apply
4. Website button (if enabled)

